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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2237/17 – 2021 ජූලි 20 වැනි අඟහරුවාදා – 2021.07.20

2237/17 – TUESDAY, JULY 20, 2021

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: CI/1849.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE Collective Agreement entered into between Hayleys Fabrics PLC, No. 400, Deans Road, Colombo 10 of the one part and the Sri Lanka Nidahas Sewaka Sangamaya, No. 341/21, 4th Floor, Sarana Mawatha, Rajagiriya of the other part on 27th February 2020 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
23rd day of June, 2021.

Collective Agreement No. 21 of 2020

This Collective Agreement made this Twenty Seventh day of February Two Thousand and Twenty to take effect from the First day of April Two Thousand and Twenty pursuant to the Industrial Disputes Act, between.



Hayleys Fabric PLC (PQ37), having its registered office at 400 Deans Road, Colombo 10 (hereinafter referred to as the "Employer") of the One Part

and

Sri Lanka Nidahas Sewaka Sangamaya a registered Trade Union having its office at 341/21, 4th Floor, Sarana Mawatha, Rajagiriya (hereinafter referred to as the 'Union') of the Second part

Witnesseth and it is hereby agreed between the parties as follows:

Title : This Agreement shall be known and referred to as the Hayleys Fabrics PLC Clerical, Supervisory and allied staff collective agreement of 2020.

COLLECTIVE AGREEMENT

This Collective Agreement entered into between Hayleys Fabric PLC (PQ37) a duly incorporated company having its registered office at No. 400 Deans Road, Colombo 10, Sri Lanka and hereinafter referred to as "the Employer" and the Sri Lanka Nidahas Sewaka Sangamaya (SLNSS), a duly registered Trade Union having its registered office at No. 341/21, 4th Floor, Sarana Mawatha, Rajagiriya hereinafter referred to as "the Union".

Whereas the Union made certain proposals to the Employer for the revision of terms and conditions of employment of their members employed by the Employer and the parties have after negotiations arrived at the following Agreement:

1. **Parties Covered and Bound** – The terms of this Collective Agreement shall cover and bind the Employer, the Union and Members of the Union who are employed by the Employer in confirmed permanent employment in the Clerical Supervisory and Allied grades.

2. **Duration** – The provisions of this Agreement shall take effect from 1st April 2020 and shall, unless otherwise terminated by either party giving one month's written notice to the other, continue to remain in force, provided however, that neither party shall give such notice prior to 1st March 2023. and the Agreement shall not stand terminated prior to the 31st day of March 2023.

3. **Salaries** – The employer agrees to revise the salaries of the employees covered and bound by this Agreement on the following basis:

- a) With effect from 1st April 2020 the monthly salaries of employees will be revised and a sum of Rs. 2,200/- will be added to the salary paid to such employees as at 31st March 2020.
- b) With effect from 1st April 2021 the monthly salaries of employees will be revised and a sum of Rs. 2,200/- will be added to the salary paid to such employees as at 31st March 2021.
- c) With effect from 1st April 2022 the monthly salaries of employees will be revised and a sum of Rs. 2,200/- will be added to the salary paid to such employees as at 31st March 2022.

4. **Shifts and Shift Allowances** – The Employer the Union and the Employees agree that the prevailing shift system shall remain in force during the pendency of this agreement unless mutually agreed by the parties.

Day Shift	7.30 am to 7.00 pm
Night Shift	7.00 pm to 7.30 am (following day)

The Employer agrees to continue to pay shift allowances during the period of this agreement at the prevailing rates.

5. **Production Incentive Scheme** – The Employer, the Union and the Employees agree that the prevailing Production Incentive Scheme shall continue during the period of this Collective Agreement.

6. **Attendance Incentive** – The Employer, the union and the Employees agree that the prevailing attendance incentive scheme shall continue during the period of this Collective Agreement.

7. **Annual Bonus** – Without prejudice to the claim of the employer that bonus payments are ex-gratia and at its discretion, the Employer, the Union and the Employees agree as follows:

The Employer will pay one months' bonus based on the average monthly basic salary of all permanent employees in the clerical supervisory and allied grades. The payment of this bonus will be made only if the Company has made a sufficient profit in the relevant financial year to cover bonus payments applicable to all categories of employees for that year.

In the event of payment of a bonus, the employees will receive the bonus based on a ranking method taking into consideration their Attendance, Punctuality and any warning letters issued to them (where applicable).

A grade performers	- 1 Months' Salary
B grade performers	- $\frac{3}{4}$ Months' Salary
C grade performers	- $\frac{1}{2}$ Months' Salary
D grade performers	- $\frac{1}{4}$ Months' Salary

(The basic salary for this purpose shall be the basic salary + budgetary relief allowance (if any).

8. **Variation of Terms & Conditions** – The Employer, Union and the Employees covered and bound by this Agreement undertake that they shall not during the continuance of this Agreement attempt to or seek to vary, alter or add to all or any of the terms and conditions of employment presently applicable to any of the employees covered and bound by this Agreement, other than by mutual agreement.

9. **Trade Union Action** – The Union and the Employees jointly and severally agree with the Employer that during the continuance in force of this Agreement they shall not engage in any strike or other form of trade union action against the Employer in respect of any dispute between the Union or the Employees and the Employer in connection with or arising out of any matter covered by this Agreement.

10. **Dispute Settlement Procedure** – Parties also agree that they would settle any dispute that may arise with regard to matters not covered by this agreement in the following manner:

- Whenever there is a dispute, a written statement of the dispute should be forwarded by the branch committee of the Union to the employer, and at least two weeks given for the employer to resolve the dispute.
- If no satisfactory solution is found the matter should be referred to the parent union and to the Employer's Federation of Ceylon (EFC) for the purpose of attempting to resolve the dispute through discussions.
- If after discussions referred to in (b) the matter cannot be resolved by the intervention of the EFC and the parent union, conciliatory proceedings under the Industrial Disputes Act should be followed.
- If after conciliation has failed in the Labour Department, the Union wishes to take Trade Union Action, written notice should be given of not less than 14 days to the Employer and the EFC.
- However, where the dispute has been caused by an act of the Employer which in the opinion of the Executive Committee of the Union as confirmed by the General Secretary of the Union has undermined the existence or the legitimate activities of the Union, the provisions of clauses 10(a) to 10(d) shall not apply and the Union shall be entitled to take trade union action provided that they have given at least 7

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I කොටස: (I) ඡේදය - ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය - 2021.07.20

PART I: SEC. (I) - GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA - 20.07.2021

days written notice to the Employer and the EFC.

In witness hereof parties have set their hands hereunto on this Twenty Seventh day of February Two Thousand and Twenty (2020) at colombo

for and on behalf of
HAYLEYS FABRIC PLC

I B R R BANDARA
DIRECTOR

Name: **E R P GOONETILLEKE**

Designation: **MANAGING DIRECTOR**

WITNESSES:

1.....

Name: **M H JAYASINGHE**

Designation: **DIRECTOR**

2.....

Name: **K P C P K PATHIRANA**

Designation: **GENERAL MANAGER
HR & ADMINISTRATION**

for and on behalf of
**SRI LANKA NIDAHAS SEWAKA
SANGAMAYA (SLNSS)**

Name: **LESLIE DEVENDRA**

Designation: **GENERAL SECRETARY**

1.....

Name: **H S N DE SILVA**

Designation: **SECRETARY - BRANCH
UNION**

2.....

Name: **K C SILVA**

Designation: **COMMITTEE MEMBER
BRANCH UNION**

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

The Collective Agreement entered into between Ceylon Biscuits Limited, P. O. Box 3, Makumbura, Pannipitiya of the one part and the Inter Company Employees Union, No. 259/9, Sethsiri Mawatha, Koswatte Talangama of the other part on 16th June 2020 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
23rd day of June, 2021.

Collective Agreement No. 28 of 2020

Collective Agreement

This Collective Agreement made on this 16th day of June Two Thousand Twenty, to take effect from first day of January Two Thousand twenty, between Ceylon Biscuits Limited, a company duly registered under the companies' ordinance, and having its registered office at P. O. Box 03, Makumbura, Pannipitiya, (hereinafter referred to as "the employer") of the one part and the Inter Company Employees Union, a Trade Union duly registered under the Trade Unions' Ordinance and having its registered office at 259/9, Sethsiri Mawatha, Koswatte, Talangama (hereinafter referred to as "the Union") of the other part.

It is hereby agreed by and between the aforesaid parties, as follows:-

1. **Title** - This Agreement shall be known and referred to as the Ceylon Biscuits Limited Factory Employees' Collective Agreement.

2. **Parties Covered and Bound** - This Agreement shall cover and bind the Employer and the Union and employees presently employed by the Employer in its factory on permanent monthly contracts in the grades of employment for which salary scales have been set out in the first schedule here of and are members of the Union.

3. **Duration of the Agreement** - This Collective Agreement shall be effective from the first day of January Two Thousand Twenty, and may be terminated by either party with one month's written notice to the other, provided however that either party shall give such notice prior to the thirtieth day of November, Two Thousand and Twenty Two. Any notice of termination of this Agreement given by either party, prior to the Thirtieth day of November, Two Thousand and Twenty Two, shall not be regarded as valid notice and shall be of no avail.

4. **Salaries** - With effect from first January Two Thousand and Twenty, the Employer will pay salaries to employees covered and bound by this agreement, in accordance with the salary scales set out in the first schedule hereof.

5. Conversion to New Salary Scales -**i. Salary Revision with effect from 1st January 2020**

To ascertain the monthly salary payable to an employee, with effect from first January Two Thousand and Twenty (2020), a sum of rupees Two thousand Seven Hundred and Fifty (Rs. 2,750/=) will be added to the salary that was paid to such employee in the month of December Two Thousand and Nineteen and such employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the first schedule hereof.

ii. Salary Revision With Effect From 1st January 2021

With effect from First January Two Thousand and Twenty One (2021), the salary of each employee covered and bound by this Agreement shall be revised by the addition of Rupees Two Thousand and Five Hundred (Rs. 2,500/=) to the salary received by such employee in the month of December Two Thousand and Twenty. Each employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the First Schedule hereof.

iii. Salary Revision With Effect From 1st January 2022

With effect from First January Two Thousand and Twenty Two (2022), the salary of each employee covered and bound by this Agreement shall be revised by the addition of Rupees Two Thousand and Five Hundred (Rs. 2,500/=) to the salary received by such employee in the month of December Two Thousand and Twenty one. Each employee shall thereafter be placed on the corresponding point in monetary terms of the salary scales set out in the First Schedule hereof.

6. Bonus -

- i By way of bonus, the Employer will pay all employees, who have completed one or more years of service, a sum equal to one month's salary per employee, in December each year, in the manner calculated as per the Second Schedule hereof.
- ii In the month of April each year, the Employer will pay to each employee, who has served during the entire previous calendar year, a bonus related to attendance, in the manner calculated as per the Second Schedule hereof.
- iii Provided the business operations of the employer have been reached the targeted profit in the 12 months preceding, to warrant the declaration of a bonus, the employer will, in the month of March each year, declare a bonus which will be paid subject to the conditions of the Second Schedule hereof. In the event of no bonus being declared by the employer in the month of March, unless as provided herein, the Union reserves to itself the right to raise an industrial dispute and have such dispute resolved under the provisions of clause 11 of this Agreement. The union and the Employees undertake that they shall not resort to any form of trade union action in respect of a dispute arising with regard to this bonus payment.
- iv Calculation of unauthorized absence for the purpose of clauses 6(i), 6(ii) and 6(iii) and 7 of this agreement will be effective from the year 2021 and will be based on the attendance of calendar year 2020.

7. Attendance Incentive Bonus - April - In addition to the April bonus, an attendance incentive Bonus of 50% of the basic salary will be paid to employees eligible as per the Second Schedule.

"Absence" for the purpose of calculating this attendance incentive payment shall be all days an employee is absent from work without authority.

"Salary" for the purpose of calculating this attendance incentive bonus will be the salary which is applicable to each employee at the time the incentive Bonus is paid.

8. **Leave -**

Casual Leave - Employees shall be entitled to 7 days casual leave during any calendar year. In the first year of employment, the casual leave entitlement shall be on the basis of one day for every two months worked. Casual leave shall not be taken in excess of two consecutive days at a time and shall not precede or succeed any period of annual or sick leave. All casual leave should be applied for in advance, provided however that in the event of any unforeseen circumstances, which prevents an employee from making an application in advance, he/she shall inform the Employer of the reasons for the absence within a period of 24 hours.

Sick Leave - Employees shall be entitled to 7 days sick leave during any calendar year. In the first year of employment, the sick leave entitlement shall be on the basis of one day for every two months worked. Wherever possible, an employee shall make an application for sick leave in advance and where such application cannot be made in advance, he shall inform the Employer of the reasons for this absence within 24 hours. Any period of sick leave in excess of two days shall have to be supported by a Medical Certificate acceptable to the Employer.

Annual Leave - The Employees will be entitled to Annual Leave in terms of the decisions of the Wages Board for the Biscuit and Confectionary Manufacturing Trade.

9. **Disputes Settlement Procedure** - It is agreed by and between parties, that any industrial dispute that may occur between the Employer and the Union and/or the employees, during the period of this Agreement, shall be dealt with in the manner set out hereunder :-

- i The Branch Union or the employees concerned shall, at the outset raise any dispute with the Employer and both parties shall endeavour to reach a satisfactory settlement of the dispute through negotiations.
- ii In the event of there being no settlement, after consultation between parties as aforesaid, the Branch Union shall raise the matter with the Union and the Union shall raise it with the Employers' Federation of Ceylon, of which the Employer is a member, and the Union and the Federation shall strive to reach a satisfactory settlement in consultation with all parties concerned.
- iii. In the event of there being no satisfactory settlement, consequent to the attempt made by the Union and the Employer's Federation of Ceylon, either party may seek the intervention of the Commissioner General of Labour to settle the dispute, in accordance with the provision of the Industrial Disputes Act.
- iv. If after conciliation has failed in the Department of Labour, the Union wishes to take Trade Union action, written notice should be given of not less than 14 days to the Employer and to the Employers' Federation of Ceylon regarding such Trade Union action.

10. **Trade Union Action** - It is agreed that the Union or the employees shall not resort to any form of Trade Union action in respect of any industrial dispute pertaining to this agreement during the period of this Agreement and shall endeavour to settle any industrial dispute that may arise during the period of this agreement, in accordance with the Dispute Procedure laid down herein.

11. **Variation of Terms and Conditions** - It is agreed by and between parties that neither party, will, during the period of this agreement attempt in any manner to change, vary, alter, add to or amend in any form, any of the terms and conditions set out in this agreement and / or any other terms and conditions which are currently applicable to the employees covered and bound by this agreement, other than by way of mutual consent.

12. **Reciprocal Obligations of the Employees** - In pursuance of the concessions granted by the Employer to the Union and the employees, the Union and the employees shall reciprocate in such manner as will benefit both employees and the company. For this purpose, the employees shall -

- a. *Customer service* - contribute at all times to excellence in customer service.
- b. *Productivity* - Co-operate in the implementation of training and all performance improvement measures adopted from time to time aimed at enhancing the productivity of the Human, Technological and Financial Resources procured and applied by the Company.

If the Company requires work to be performed on a statutory holiday or a Poya day, and upon sufficient prior notice being given to workers in that regard, a worker may volunteer to work on such statutory or Poya holiday subject to statutory obligations imposed on the Company in respect of the performed on that day.

The Union agrees that they will not object to such work arrangement if done with the consent of workers.

- c. *Quality* - Actively and consistently contribute to achieve and maintain those standards of quality prescribed by National and International Institutions and which may be prescribed from time to time as applicable to product and processes engaged in by the Company and as may be laid down by the Management.
- d. *Security* - Contribute actively to maintain the security of all personnel and property belonging to the Company.
- e. *Safety* - Consistently maintain prescribed safety standards in regard to persons, equipment, process, material, work group, work environment and follow all instructions, which may be given from time to time, aimed at securing the safety of the above.
- f. To ensure that all Company issued clothing and devices / tools will be kept in good condition and to immediately report all equipment defects to supervisors.
- g. *Personal Hygien* - Meet and consistently maintain all standards and practices set out for the personal hygiene of employees as required by the Management.
- h. *House- keeping* - Meet and extend full co- operation in maintaining standards set out for good house - keeping.
- i. Accept recognized work study findings and to optimize skills and manning levels accordingly .
- j. *Service Image* - Consistently maintain integrity in service and not expect or accept gratification in any form or manner from customers, distributors, suppliers or their Agents or representatives for any services rendered in the performance of employees' duties.
- k. *Job Rotation* - Job enlargement and rotation to be adhered.
- l. *Company Image* - Actively and wherever possible, promote the good image of the Company, and refrain from acting in any manner within or outside of the environment that would adversely affect the image, goodwill or reputation of the Company and its employees.
- m. *Minimizing of waste* - Actively and consistently contribute to all prescribed activities by the management and the company to eliminate waste of.
 - a. Wrapping
 - b. Biscuit grinding
 - c. Sweeping
 - d. Other waste

- n. *Saturday night shift* - All Female employees absorbed to the permanent cadre from 1st day of January Two Thousand Seventeen onwards and all female employees who will be absorbed to the permanent cadre in future, to report to Saturday night shift (10 p.m. to 6 a.m.) as a normal routine shift.

13. *Reciprocal Obligations of the Employer -*

- a. The Company shall, for the duration of this Collective Agreement, absorb a minimum of 30 employees annually to the permanent cadre from the "3 years contract pool" based on their satisfactory attendance, seniority and good conduct.

The "3 year contract pool" herein refers to employees in the three (3) year fixed term contract pool of the Company.

This shall become effective from the date of signing of this Collective Agreement.

- b. The Company shall, for the duration of this Collective Agreement, provide an opportunity for a minimum of 20 manpower employees per annum to be absorbed to the "3 year contract pool" as new employees subject to the Company's recruitment process.

In witness hereof parties have set their hands on this 16th day of June Two Thousand Twenty.

For & on behalf of
Ceylon Biscuits Ltd.

Name: Nalin B Karunaratne

Designation: Chief Executive Officer

Signature:

Witness: Head of Human Resources
CBL

Name: Gehan Mendis

Signature:

For & on behalf of
Inter Company Employees' Union

Name: Wasantha Samarasinghe

Designation: President

Signature:

Witness: President, Branch Union of

Name: Sisira Kumaratunge

Signature:

FIRST SCHEDULE

Salary Scale for Associate 2020 - 2022

	2020			
	2750/-			
	FAC 1 400	FAC 2 550	FAC 3 700	FAC 4 850
1	16500	17050	17750	18600
2	16550	17100	17800	18650
3	16600	17150	17850	18700
4	16650	17200	17900	18750
5	16700	17250	17950	18800
6	16750	17300	18000	18850
7	16800	17350	18050	18900
8	16850	17400	18100	18950
9	16900	17450	18150	19000
10	16950	17500	18200	19050
11	17000	17550	18250	19100
12	17050	17600	18300	19150
13	17100	17650	18350	19200
14	17150	17700	18400	19250
15	17200	17750	18450	19300
16	17250	17800	18500	19350
17	17300	17850	18550	19400
18	17350	17900	18600	19450
19	17400	17950	18650	19500
20	17450	18000	18700	19550
21	17500	18050	18750	19600
22	17550	18100	18800	19650
23	17600	18150	18850	19700
24	17650	18200	18900	19750
25	17700	18250	18950	19800
26	17750	18300	19000	19850
27	17800	18350	19050	19900
28	17850	18400	19100	19950
29	17900	18450	19150	20000
30	17950	18500	19200	20050
31	18000	18550	19250	20100
32	18050	18600	19300	20150
33	18100	18650	19350	20200
34	18150	18700	19400	20250
35	18200	18750	19450	20300
36	18250	18800	19500	20350
37	18300	18850	19550	20400
38	18350	18900	19600	20450
39	18400	18950	19650	20500
40	18450	19000	19700	20550
41	18500	19050	19750	20600
42	18550	19100	19800	20650
43	18600	19150	19850	20700
44	18650	19200	19900	20750
45	18700	19250	19950	20800
46	18750	19300	20000	20850
47	18800	19350	20050	20900
48	18850	19400	20100	20950
49	18900	19450	20150	21000
50	18950	19500	20200	21050
51	19000	19550	20250	21100
52	19050	19600	20300	21150
53	19100	19650	20350	21200
54	19150	19700	20400	21250
55	19200	19750	20450	21300
56	19250	19800	20500	21350
57	19300	19850	20550	21400
58	19350	19900	20600	21450
59	19400	19950	20650	21500
60	19450	20000	20700	21550
61	19500	20050	20750	21600
62	19550	20100	20800	21650
63	19600	20150	20850	21700
64	19650	20200	20900	21750
65	19700	20250	20950	21800
66	19750	20300	21000	21850

	2021			
	2500/-			
	FAC 1 400	FAC 2 550	FAC 3 700	FAC 4 850
1	16550	17100	17800	18650
2	16600	17150	17850	18700
3	16650	17200	17900	18750
4	16700	17250	17950	18800
5	16750	17300	18000	18850
6	16800	17350	18050	18900
7	16850	17400	18100	18950
8	16900	17450	18150	19000
9	16950	17500	18200	19050
10	17000	17550	18250	19100
11	17050	17600	18300	19150
12	17100	17650	18350	19200
13	17150	17700	18400	19250
14	17200	17750	18450	19300
15	17250	17800	18500	19350
16	17300	17850	18550	19400
17	17350	17900	18600	19450
18	17400	17950	18650	19500
19	17450	18000	18700	19550
20	17500	18050	18750	19600
21	17550	18100	18800	19650
22	17600	18150	18850	19700
23	17650	18200	18900	19750
24	17700	18250	18950	19800
25	17750	18300	19000	19850
26	17800	18350	19050	19900
27	17850	18400	19100	19950
28	17900	18450	19150	20000
29	17950	18500	19200	20050
30	18000	18550	19250	20100
31	18050	18600	19300	20150
32	18100	18650	19350	20200
33	18150	18700	19400	20250
34	18200	18750	19450	20300
35	18250	18800	19500	20350
36	18300	18850	19550	20400
37	18350	18900	19600	20450
38	18400	18950	19650	20500
39	18450	19000	19700	20550
40	18500	19050	19750	20600
41	18550	19100	19800	20650
42	18600	19150	19850	20700
43	18650	19200	19900	20750
44	18700	19250	19950	20800
45	18750	19300	20000	20850
46	18800	19350	20050	20900
47	18850	19400	20100	20950
48	18900	19450	20150	21000
49	18950	19500	20200	21050
50	19000	19550	20250	21100
51	19050	19600	20300	21150
52	19100	19650	20350	21200
53	19150	19700	20400	21250
54	19200	19750	20450	21300
55	19250	19800	20500	21350
56	19300	19850	20550	21400
57	19350	19900	20600	21450
58	19400	19950	20650	21500
59	19450	20000	20700	21550
60	19500	20050	20750	21600
61	19550	20100	20800	21650
62	19600	20150	20850	21700
63	19650	20200	20900	21750
64	19700	20250	20950	21800
65	19750	20300	21000	21850
66	19800	20350	21050	21900

	2022			
	2500/-			
	FAC 1 400	FAC 2 550	FAC 3 700	FAC 4 850
1	16600	17150	17850	18700
2	16650	17200	18900	19750
3	16700	17250	18950	19800
4	16750	17300	19000	19850
5	16800	17350	19050	19900
6	16850	17400	19100	19950
7	16900	17450	19150	20000
8	16950	17500	19200	20050
9	17000	17550	19250	20100
10	17050	17600	19300	20150
11	17100	17650	19350	20200
12	17150	17700	19400	20250
13	17200	17750	19450	20300
14	17250	17800	19500	20350
15	17300	17850	19550	20400
16	17350	17900	19600	20450
17	17400	17950	19650	20500
18	17450	18000	19700	20550
19	17500	18050	19750	20600
20	17550	18100	19800	20650
21	17600	18150	19850	20700
22	17650	18200	19900	20750
23	17700	18250	19950	20800
24	17750	18300	20000	20850
25	17800	18350	20050	20900
26	17850	18400	20100	20950
27	17900	18450	20150	21000
28	17950	18500	20200	21050
29	18000	18550	20250	21100
30	18050	18600	20300	21150
31	18100	18650	20350	21200
32	18150	18700	20400	21250
33	18200	18750	20450	21300
34	18250	18800	20500	21350
35	18300	18850	20550	21400
36	18350	18900	20600	21450
37	18400	18950	20650	21500
38	18450	19000	20700	21550
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41	18600	19150	20850	21700
42	18650	19200	20900	21750
43	18700	19250	20950	21800
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47	18900	19450	21150	22000
48	18950	19500	21200	22050
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52	19150	19700	21400	22250
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54	19250	19800	21500	22350
55	19300	19850	21550	22400
56	19350	19900	21600	22450
57	19400	19950	21650	22500
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59	19500	20050	21750	22600
60	19550	20100	21800	22650
61	19600	20150	21850	22700
62	19650	20200	21900	22750
63	19700	20250	21950	22800
64	19750	20300	22000	22850
65	19800	20350	22050	22900
66	19850	20400	22100	22950

67	19800	20350	21050	21900
68	19850	20400	21100	21950
69	19900	20450	21150	22000
70	19950	20500	21200	22050
71	20000	20550	21250	22100
72	20050	20600	21300	22150
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74	20150	20700	21400	22250
75	20200	20750	21450	22300
76	20250	20800	21500	22350
77	20300	20850	21550	22400
78	20350	20900	21600	22450
79	20400	20950	21650	22500
80	20450	21000	21700	22550
81	20500	21050	21750	22600
82	20550	21100	21800	22650
83	20600	21150	21850	22700
84	20650	21200	21900	22750
85	20700	21250	21950	22800
86	20750	21300	22000	22850
87	20800	21350	22050	22900
88	20850	21400	22100	22950
89	20900	21450	22150	23000
90	20950	21500	22200	23050
91	21000	21550	22250	23100
92	21050	21600	22300	23150
93	21100	21650	22350	23200
94	21150	21700	22400	23250
95	21200	21750	22450	23300
96	21250	21800	22500	23350
97	21300	21850	22550	23400
98	21350	21900	22600	23450
99	21400	21950	22650	23500
100	21450	22000	22700	23550
101	21500	22050	22750	23600
102	21550	22100	22800	23650
103	21600	22150	22850	23700
104	21650	22200	22900	23750
105	21700	22250	22950	23800
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107	21800	22350	23050	23900
108	21850	22400	23100	23950
109	21900	22450	23150	24000
110	21950	22500	23200	24050
111	22000	22550	23250	24100
112	22050	22600	23300	24150
113	22100	22650	23350	24200
114	22150	22700	23400	24250
115	22200	22750	23450	24300
116	22250	22800	23500	24350
117	22300	22850	23550	24400
118	22350	22900	23600	24450
119	22400	22950	23650	24500
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126	22750	23300	24000	24850
127	22800	23350	24050	24900
128	22850	23400	24100	24950
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132	23050	23600	24300	25150
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139	23400	23950	24650	25500
140	23450	24000	24700	25550
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19950	20500	21200	22050
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20050	20600	21300	22150
20100	20650	21350	22200
20150	20700	21400	22250
20200	20750	21450	22300
20250	20800	21500	22350
20300	20850	21550	22400
20350	20900	21600	22450
20400	20950	21650	22500
20450	21000	21700	22550
20500	21050	21750	22600
20550	21100	21800	22650
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20650	21200	21900	22750
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22050	22600	23300	24150
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23150	23700	24400	25250
23200	23750	24450	25300
23250	23800	24500	25350
23300	23850	24550	25400
23350	23900	24600	25450
23400	23950	24650	25500
23450	24000	24700	25550
23500	24050	24750	25600
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20800	21350	23050	23900
20850	21400	23100	23950
20900	21450	23150	24000
20950	21500	23200	24050
21000	21550	23250	24100
21050	21600	23300	24150
21100	21650	23350	24200
21150	21700	23400	24250
21200	21750	23450	24300
21250	21800	23500	24350
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21800	22350	24050	24900
21850	22400	24100	24950
21900	22450	24150	25000
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22250	22800	24500	25350
22300	22850	24550	25400
22350	22900	24600	25450
22400	22950	24650	25500
22450	23000	24700	25550
22500	23050	24750	25600
22550	23100	24800	25650
22600	23150	24850	25700
22650	23200	24900	25750
22700	23250	24950	25800
22750	23300	25000	25850
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23100	23650	25350	26200
23150	23700	25400	26250
23200	23750	25450	26300
23250	23800	25500	26350
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23400	23950	25650	26500
23450	24000	25700	26550
23500	24050	25750	26600
23550	24100	25800	26650
23600	24150	25850	26700

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143	23600	24150	24850	25700
144	23650	24200	24900	25750
145	23700	24250	24950	25800
146	23750	24300	25000	25850
147	23800	24350	25050	25900
148	23850	24400	25100	25950
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154	24150	24700	25400	26250
155	24200	24750	25450	26300
156	24250	24800	25500	26350
157	24300	24850	25550	26400
158	24350	24900	25600	26450
159	24400	24950	25650	26500
160	24450	25000	25700	26550
161	24500	25050	25750	26600
162	24550	25100	25800	26650
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165	24700	25250	25950	26800
166	24750	25300	26000	26850
167	24800	25350	26050	26900
168	24850	25400	26100	26950
169	24900	25450	26150	27000
170	24950	25500	26200	27050
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172	25050	25600	26300	27150
173	25100	25650	26350	27200
174	25150	25700	26400	27250
175	25200	25750	26450	27300
176	25250	25800	26500	27350
177	25300	25850	26550	27400
178	25350	25900	26600	27450
179	25400	25950	26650	27500
180	25450	26000	26700	27550
181	25500	26050	26750	27600
182	25550	26100	26800	27650
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184	25650	26200	26900	27750
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186	25750	26300	27000	27850
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188	25850	26400	27100	27950
189	25900	26450	27150	28000
190	25950	26500	27200	28050
191	26000	26550	27250	28100
192	26050	26600	27300	28150
193	26100	26650	27350	28200
194	26150	26700	27400	28250
195	26200	26750	27450	28300
196	26250	26800	27500	28350
197	26300	26850	27550	28400
198	26350	26900	27600	28450
199	26400	26950	27650	28500
200	26450	27000	27700	28550
201	26500	27050	27750	28600
202	26550	27100	27800	28650
203	26600	27150	27850	28700
204	26650	27200	27900	28750
205	26700	27250	27950	28800
206	26750	27300	28000	28850
207	26800	27350	28050	28900
208	26850	27400	28100	28950
209	26900	27450	28150	29000
210	26950	27500	28200	29050
211	27000	27550	28250	29100
212	27050	27600	28300	29150
213	27100	27650	28350	29200
214	27150	27700	28400	29250
215	27200	27750	28450	29300
216	27250	27800	28500	29350

23600	24150	24850	25700
23650	24200	24900	25750
23700	24250	24950	25800
23750	24300	25000	25850
23800	24350	25050	25900
23850	24400	25100	25950
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24050	24600	25300	26150
24100	24650	25350	26200
24150	24700	25400	26250
24200	24750	25450	26300
24250	24800	25500	26350
24300	24850	25550	26400
24350	24900	25600	26450
24400	24950	25650	26500
24450	25000	25700	26550
24500	25050	25750	26600
24550	25100	25800	26650
24600	25150	25850	26700
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24800	25350	26050	26900
24850	25400	26100	26950
24900	25450	26150	27000
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25100	25650	26350	27200
25150	25700	26400	27250
25200	25750	26450	27300
25250	25800	26500	27350
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25400	25950	26650	27500
25450	26000	26700	27550
25500	26050	26750	27600
25550	26100	26800	27650
25600	26150	26850	27700
25650	26200	26900	27750
25700	26250	26950	27800
25750	26300	27000	27850
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25850	26400	27100	27950
25900	26450	27150	28000
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26200	26750	27450	28300
26250	26800	27500	28350
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26350	26900	27600	28450
26400	26950	27650	28500
26450	27000	27700	28550
26500	27050	27750	28600
26550	27100	27800	28650
26600	27150	27850	28700
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26750	27300	28000	28850
26800	27350	28050	28900
26850	27400	28100	28950
26900	27450	28150	29000
26950	27500	28200	29050
27000	27550	28250	29100
27050	27600	28300	29150
27100	27650	28350	29200
27150	27700	28400	29250
27200	27750	28450	29300
27250	27800	28500	29350
27300	27850	28550	29400

23650	24200	25900	26750
23700	24250	25950	26800
23750	24300	26000	26850
23800	24350	26050	26900
23850	24400	26100	26950
23900	24450	26150	27000
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24800	25350	27050	27900
24850	25400	27100	27950
24900	25450	27150	28000
24950	25500	27200	28050
25000	25550	27250	28100
25050	25600	27300	28150
25100	25650	27350	28200
25150	25700	27400	28250
25200	25750	27450	28300
25250	25800	27500	28350
25300	25850	27550	28400
25350	25900	27600	28450
25400	25950	27650	28500
25450	26000	27700	28550
25500	26050	27750	28600
25550	26100	27800	28650
25600	26150	27850	28700
25650	26200	27900	28750
25700	26250	27950	28800
25750	26300	28000	28850
25800	26350	28050	28900
25850	26400	28100	28950
25900	26450	28150	29000
25950	26500	28200	29050
26000	26550	28250	29100
26050	26600	28300	29150
26100	26650	28350	29200
26150	26700	28400	29250
26200	26750	28450	29300
26250	26800	28500	29350
26300	26850	28550	29400
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26450	27000	28700	29550
26500	27050	28750	29600
26550	27100	28800	29650
26600	27150	28850	29700
26650	27200	28900	29750
26700	27250	28950	29800
26750	27300	29000	29850
26800	27350	29050	29900
26850	27400	29100	29950
26900	27450	29150	30000
26950	27500	29200	30050
27000	27550	29250	30100
27050	27600	29300	30150
27100	27650	29350	30200
27150	27700	29400	30250
27200	27750	29450	30300
27250	27800	29500	30350
27300	27850	29550	30400
27350	27900	29600	30450

I කොටස: (I) ඡේදය – ශ්‍රී ලංකා ප්‍රජාතාන්ත්‍රික සමාජවාදී ජනරජයේ අති විශේෂ ගැසට් පත්‍රය – 2021.07.20

13A

PART I: SEC. (I) – GAZETTE EXTRAORDINARY OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA – 20.07.2021

217	27300	27850	28550	29400
218	27350	27900	28600	29450
219	27400	27950	28650	29500
220	27450	28000	28700	29550
221	27500	28050	28750	29600
222	27550	28100	28800	29650
223	27600	28150	28850	29700
224	27650	28200	28900	29750
225	27700	28250	28950	29800
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231	28000	28550	29250	30100
232	28050	28600	29300	30150
233	28100	28650	29350	30200
234	28150	28700	29400	30250
235	28200	28750	29450	30300
236	28250	28800	29500	30350
237	28300	28850	29550	30400
238	28350	28900	29600	30450
239	28400	28950	29650	30500
240	28450	29000	29700	30550
241	28500	29050	29750	30600
242	28550	29100	29800	30650
243	28600	29150	29850	30700
244	28650	29200	29900	30750
245	28700	29250	29950	30800
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257	29300	29850	30550	31400
258	29350	29900	30600	31450
259	29400	29950	30650	31500
260	29450	30000	30700	31550
261	29500	30050	30750	31600
262	29550	30100	30800	31650
263	29600	30150	30850	31700
264	29650	30200	30900	31750
265	29700	30250	30950	31800
266	29750	30300	31000	31850
267	29800	30350	31050	31900
268	29850	30400	31100	31950
269	29900	30450	31150	32000
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271	30000	30550	31250	32100
272	30050	30600	31300	32150
273	30100	30650	31350	32200
274	30150	30700	31400	32250
275	30200	30750	31450	32300
276	30250	30800	31500	32350
277	30300	30850	31550	32400
278	30350	30900	31600	32450
279	30400	30950	31650	32500
280	30450	31000	31700	32550
281	30500	31050	31750	32600
282	30550	31100	31800	32650
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38550	39100	40800	41650
38600	39150	40850	41700

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444	38650	39200	39900	40750
445	38700	39250	39950	40800
446	38750	39300	40000	40850
447	38800	39350	40050	40900
448	38850	39400	40100	40950
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450	38950	39500	40200	41050
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453	39100	39650	40350	41200
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459	39400	39950	40650	41500
460	39450	40000	40700	41550
461	39500	40050	40750	41600
462	39550	40100	40800	41650
463	39600	40150	40850	41700
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465	39700	40250	40950	41800
466	39750	40300	41000	41850
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38750	39300	40000	40850
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39000	39550	40250	41100
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39100	39650	40350	41200
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39200	39750	40450	41300
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39650	40200	40900	41750
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41700	42250	42950	43800
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39850	40400	42100	42950
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41300	41850	43550	44400
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41500	42050	43750	44600
41550	42100	43800	44650
41600	42150	43850	44700
41650	42200	43900	44750
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42100	42650	44350	45200
42150	42700	44400	45250
42200	42750	44450	45300
42250	42800	44500	45350
42300	42850	44550	45400
42350	42900	44600	45450

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547	43800	44350	45050	45900
548	43850	44400	45100	45950
549	43900	44450	45150	46000
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42450	43000	43700	44550
42500	43050	43750	44600
42550	43100	43800	44650
42600	43150	43850	44700
42650	43200	43900	44750
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42800	43350	44050	44900
42850	43400	44100	44950
42900	43450	44150	45000
42950	43500	44200	45050
43000	43550	44250	45100
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43100	43650	44350	45200
43150	43700	44400	45250
43200	43750	44450	45300
43250	43800	44500	45350
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43600	44150	44850	45700
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43800	44350	45050	45900
43850	44400	45100	45950
43900	44450	45150	46000
43950	44500	45200	46050
44000	44550	45250	46100

42400	42950	44650	45500
42450	43000	44700	45550
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42550	43100	44800	45650
42600	43150	44850	45700
42650	43200	44900	45750
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43450	44000	45700	46550
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43750	44300	46000	46850
43800	44350	46050	46900
43850	44400	46100	46950
43900	44450	46150	47000
43950	44500	46200	47050
44000	44550	46250	47100
44050	44600	46300	47150

SECOND SCHEDULE**I. Bonus Paid in December**

The employees who have completed one year of service, will be entitled for a bonus payment made in the month of December.

II. Bonus paid in March

The employees who have 15 days or more unauthorized absence during the previous calendar year will not be entitled to the bonus payment made in the month of March.

III. Bonus paid in April

a. The employees who have 5 days or more unauthorized absence during the previous calendar year will not be entitled to the bonus payment made in the month of April.

b. Employees who have half day (0.5) or more but less than 4.5 days of unauthorized absence during the previous calendar year will be entitled to half payment (50%) of bonus payment made in the month of April.

IV. Attendance Incentive Bonus (Paid in the month of April)

Employees who have a half day or more unauthorized absence during the previous calendar year will not be entitled to the attendance incentive bonus paid in the month of April.

Summary Table

<i>Unauthorized Leave Days</i>	<i>Loss of Bonus</i>	<i>Entitled Bonus</i>
Above 15 Days	March, April and Attendance incentive Bonus	December
5 - 14.5 Days	April Bonus (1) and Attendance Incentive Bonus	December and March
0.5 - 4.5 days	April bonus (0.5) and attendance Incentive Bonus	December, March Full bonus and 0.5 April Bonus.

07-717

My No.: සායි/එතු/3/2020.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

The Collective Agreement entered into between Employers Federation of Ceylon, No. 385 J 3, Old Kotte Road, Rajagiriya of the one part and the Ceylon Estate Staffs Union, No. 06, Aloe Avenue, Colombo 03 of the other part on 06th November 2019 is hereby published in terms of Section 06 of the Industrial Disputes Act, Chapter 131, of the Legislative Enactments of Ceylon (Revised Edition 1956).

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Department of Labour,
Labour Secretariat,
Colombo 05.
23rd June, 2021.

Collective Agreement No. 29 of 2020

Collective Agreement - Clerical Staff

THIS COLLECTIVE AGREEMENT made and entered into between the Employers Federation of Ceylon, No. 385 J 3, Old Kotte Road, Rajagiriya of the first part, and the Ceylon Estate Staffs' Union of No 6, Aloe Avenue, Colombo 3 of the second part on this 6th day of November, Two thousand nineteen witnesseth as follows.

1. **Title** – This Agreement shall be known as the Plantations Clerical Staff Collective Agreement.

2. **Employers Covered and Bound** – This Agreement shall bind the members of the Employer's Federation of Ceylon, whose names are contained in shedule I hereto and hereinafter referred to as the Employers or Employer, as the case may be according to context, for and in respect of the categories of employees hereinafter described in Clause 3 hereof.

3. **Union and Employees Covered and Bound** – This Agreement shall cover and bind the aforesaid Trade Union, hereinafter referred to as the Union, and members of the said Union who are employed by the members of the Federation referred to in schedule I on monthly contracts of employment and in respect of whom salary ranges are precribed in schedule II hereon.

4. **Earlier Agreements** – This provisions of this Agreement shall supersede and replace any earlier Agreements in respect of these categories and shall be deemed conclusive in relation to all terms and conditions. In the event of there being any dispute with regard to the existence of any other term or condition not contained herein, the same shall be resolved by reference to the 'dispute committee' and thereafter to the Commissioner General of Labour in terms of the Industrial Disputes Act if the matter is not resolved before the 'dispute committee', but the party of the second part shall not be entitled to take trade union action on the basis of the existance of any such alleged term or condition.

5. **Date of Operation and Duration**– Subject to any provisions to the contrary, this Agreement shall be effective from 1st October 2019 and shall thereafter continue in force unless terminated by either party by giving notice of termination in terms of the Industrial Disputes Act, subject to the condition that no party shall give such notice to the other before 30th September 2022.

6. General Terms and Conditions–

- (i) The revised terms and conditions relating to this Agreement shall only come into force on the 1st October 2019 and shall be deemed to be included in all contracts of employment of those covered by this Agreement with effect from the said date.
- (ii) Grading of employees covered shall be at the discretion of the Employer.
- (iii) Upon completion of 10 years of service under the same employer, Administrative Officers shall be re-designated as 'Special Grade Administrative Officers' with a minimum of one (1) increment.
- (iv) Upon completion of 10 years satisfactory service under the same employer, Junior Clerks shall be re-designated as clerks, with a minimum of one (1) increment.
- (v) Any employee enjoying better terms and conditions than what is stipulated in this Agreement shall continue to enjoy the same.

7. First Appointment –

- (i) No person will be recruited to a grade covered by this Agreement unless he has successfully completed the G.C.E (Ordinary Level) Examination with English and Arithmetic/Mathematics. This will not apply to those who have experience in the trade.
- (ii) All designations of new recruits should be as specified under schedule II hereof.

- (iii) Storekeepers are to be placed in a grade that is comparable to those in the clerical grade on salary applicable to clerks.

8. **Probation** – On recruitment every employee shall serve a period of probation of not more than six months, subject to the right of the Employer to extend the probationary period for a further period of three months at his discretion for reasons of unsatisfactory performance, misconduct or other justifiable cause. Confirmation shall be by letter. However, in the event of the probationary period not being extended after the period of 6 months, the employee shall be deemed to be confirmed not with standing there being no letter of confirmation. During the period of probation or extended probation the Employer shall have the right to terminate his/her service without notice or assigning reasons therefor.

9. **Attendance at Work** – Unless otherwise specifically instructed by the Employer an employee shall present himself for work on every day other than a holiday due to him, at the usual starting time and at the usual working place and shall thereafter remain available for work throughout the normal working hours.

10. **Promotions** –

- (i) Wherever vacancies exist, all other factors being comparable, seniority shall be given preference. The Employers shall advertise internally vacancies where employees covered by this Agreement may have appropriate skills and qualifications to make them eligible.
- (ii) Where an employee acts in a senior capacity over a period of 6 months and if he is confirmed in the senior capacity, he will not be required to serve a period of probation.
- (iii) Where an employee is required to act in a senior capacity for a period of more than one month, it should be communicated to him in writing and he shall be paid an Acting Allowance of Rupees Two Thousand Five Hundred (Rs. 2500/-) per mensem. When confirmed, this acting allowance shall be added to the salary.
- (iv) When promoting an employee to a senior position, a salary increase of minimum one (1) increment shall be granted.
- (v) If an employee obtains a work-related course certificate from National Institute of Plantation Management (other than the courses initiated by the company) as approved by the management, such employee shall be granted special increments with reimbursement of course fee and to be considered for a higher position.

11. **Salaries** –

1. The salaries payable to the employees covered and bound by this Agreement with effect from 1st October 2019 shall be as follows:
 - (i) With effect from 1st October 2019, the salaries of all employees in employment shall be increased by 25% based on last drawn salary.
 - (ii) Employees who reach the maximum salary point depicted in the scale will continue to receive annual increments if they continue to remain within the same category.
 - (iii) In the case of Stenographers/Clerical staff and Storekeepers/Clerical staff who are entitled to an allowance on account of work as a Stenographer or Storekeeper, as the case may be, such employee shall continue to receive his/her. The allowance shall not be payable if the additional duties are not performed or not deemed necessary. Contributions to EPF and ETF shall be made in respect of this allowance.
 - (iv) In terms of the above salary revision, the salary ranges applicable will accordingly be revised as per schedule II of this Agreement.

(v) Subject to the provisions set out in clause 6(i) above, the Regional Plantations Companies covered and bound shall pay the revised salaries in the month of October 2019.

2. (a) With effect from the date hereof, employees who are entitled to a payment in lieu of staff quarters being provided to them, shall receive a 10% increment of the following allowances which will be rounded off to the nearest fifty rupees. depending on the grade to which they belong, and the revised allowance will be as follows:

Junior Clerk	-	Rs 1,234+10% = Rs 1,350
Clerk	-	Rs 1,307+10% = Rs 1,450
Senior Clerk	-	Rs 1,525+10% = Rs 1,700
Administrative Officer	-	Rs 1,670+10% = Rs 1,850
Special Grade Admin. Officer	-	Rs 1,742+10% = Rs 1,900

(b) In the event of any person not occupying quarters provided by the Employer, such person shall be liable to disciplinary action.

12. **Annual Increments** –

(i) Annual increments shall be granted automatically on completion of a year's service. The increments will be awarded in accordance with the practice prevailing on each estate. Where increments are awarded on a uniform date to all employees, in the event of an employee being confirmed in service within six months of the date on which increments are awarded, he shall not be entitled to any increment and will become eligible only from the following year.

ii. An increment may be suspended, stopped or deferred by way of punishment or for general inefficiency, after the employee has been notified in writing of such fact. In the case of deferment, the loss of increment shall be continuous, whereas stoppage would be only for the period relevant to the stoppage.

iii. Revised annual increments shall be paid as stated below to all employees in employment as on 1st October 2019.

	2019/20	2020/21	2021/22
Junior Clerk	Rs600/-	Rs600/-	Rs675/-
Clerk	Rs700/-	Rs700/-	Rs825/-
Storekeeper	Rs700/-	Rs700/-	Rs825/-
Senior Clerk	Rs850/-	Rs850/-	Rs1025/-
Admin Officer	Rs1350/-	Rs1350/-	Rs1575/-
Special Grade Admin Officer	Rs1700/-	Rs1700/-	Rs2025/-

13. **Hours of Work And Overtime** – If required by his Employer, an Employee shall work reasonable overtime which has been authorized by the Employer. Each hour of overtime work shall be calculated as per the provisions of the Shop & Office Employees' Act.

14. **Weekly and Poya Holidays** – An employee will be entitled to weekly holidays on Saturday half-day and Sunday full day as provided in the Shop & Office Employees Act. Payment for work on such days shall be remunerated at the prescribed statutory rates.

15. **Statutory Holidays** – An employees covered by this Agreement will be entitled to statutory holidays as provided in the Shop & Office Employees' Act.

Tamil Thai Pongal Day
National Day

Day Prior to Sinhala & Tamil New Year
 Sinhala & Tamil New Year Day
 May Day
 Day Following Vesak Full Moon Poya Day
 Holy Prophet's Birthday (Milad - Un- Nabi)
 Christmas Day

Payment for work on such holidays shall be remunerated according to the provisions of the Shop & Office Employees' Act.

16. *Leave -*

- 1 **Annual Leave** - shall be granted as prescribed in the Shop & Office Employees Act. All employees with more than 20 years' service and Heads of Departments shall be entitled to three weeks paid annual leave as a special benefits; this right shall not extend to any employee recruited after 1st September 1993. Annual leave not utilized in any one year shall not be carried over to the next year.
- 2 **Casual Leave** - All employees shall be entitled in each year to a maximum of seven (7) days Casual Leave with full pay, not more than three (3) days being taken at a time. Casual leave not utilized in any one year will not be carried over to the next year.
- 3 (i) **Sick Leave** - Leave on full pay shall be granted up to a maximum of 21 working days in a year. Sick leave will be granted up to two days at a time without the submission of a Medical Certificate. For leave of three days and over, a medical certificate from an approved Medical Practitioner or Government Hospital shall be considered necessary, subject to the right of the Employer to call for a medical certificate as aforementioned, where he deems it appropriate.
- (ii) In the event of an employee not availing himself of his full quota of sick leave, he may carry forward his leave, which he could use in the event of hospitalization or a prolonged illness in a succeeding year, subject to the condition however that he cannot avail himself of more than 90 days on that account.
- (iii) In the case of an employee whose terms presently permit a higher quantum of sick leave he/she shall be permitted to continue to enjoy such concession as personal to him/her.

4 **Maternity Leave**

Maternity leave will be as per the provisions of the Shop & Office Employees' Act. Accordingly, 84 Working days of maternity leave will be granted on a live child birth.

17. *Administrative Transfers-*

- i Transfers not involving hardship in relation to schooling of children or employment of a spouse, will, subject to the exigencies of the service and the requirements of the Employer, be made at the discretion of the Management with one month's notice in writing.
- ii Transfers from one estate to another or from one division to another which are likely to cause hardship on account of children's schooling or the spouses employment shall generally be made at the end of the year with three (3) calendar month's notice in writing on or before 30th September.
- iii Employees whose children are sitting for the GCE OL/AL examination for the first time will not be transferred in that particular year.
- iv The transfers of Employees whose children are to be admitted to Grade 1 in School also will be considered on a case- by-case basis.

- v No employee shall be transferred from one plantation company to another managed by the same management company, without the consent of the employee.
- vi No employee covered by this Agreement shall be transferred, except on disciplinary grounds, in the last year prior to his retirement.
- vii The provisions of sub-clauses (i), (ii), (iii) and (iv) above shall not apply to transfers on disciplinary grounds, but the management shall give reasonable notice, depending on the circumstances of each case.

18. Age of Retirement -

- (i) Unless the letter of appointment specifies a higher retiral age, the age of retirement shall be 60 years and will be applicable to those who are in employment as at the date of signing this Agreement.
- (ii) However, an Employer may retire an employee at the age of 55 years, subject to unsatisfactory work performance, conduct or state of health of the employee. For this purpose 'unsatisfactory work performance' shall include any act of misconduct in respect of which disciplinary action has been taken.
- (iii) An employer who decides to retire an employee at the age of 55 years on grounds stated at (ii) above shall give such employee one year's notice in writing or pay one year's salary in lieu of such notice. Where such notice is not given and the employee concerned is found guilty of misconduct during such one year period, which misconduct would have otherwise resulted in his retirement at 55 years, the employee shall be retired on reaching 55 years notwithstanding the fact that notice has not been given or payment made in lieu.

19. Gratuity - Gratuity shall be payable in accordance with the Payment of Gratuity Act, No. 12 of 1983

20. Disciplinary Inquiries-

- (i) An employee may be suspended without pay by his Employer pending an inquiry on a charge which warrants dismissal or where, in the opinion of the Employer, a breach of the peace, damage to property or disturbance of business needs to be avoided. Where an employee is suspended without pay he shall be notified in a general manner of the reasons for such suspension within 3 days of the actual suspension.
- (ii) An employee may also be suspended with pay pending a disciplinary investigation and inquiry, where the Management deems that such measure is necessary.
- (iii) An employee is entitled to be furnished with a 'show cause' notice setting out the charges of misconduct alleged against him and the employee shall be granted not less than seven (7) clear working days in which to give the answer or explanation. Where necessary the employee may request further time and the Employer shall permit a reasonable amount of time depending on the nature of the charges, but not exceeding a total of 14 working days, other than in exceptional circumstances.
- (iv) If the employer is satisfied with the written explanation, the employee shall be exonerated of the charge or charges and where appropriate he shall be summoned to report back or work. Where the explanation is unsatisfactory, the employer shall hold a disciplinary inquiry within a reasonable length of time and shall commence such inquiry within 30 working days from the date on which the explanation to the 'show cause' letter is received, unless circumstances prevent the employer from doing so.
- (v) An employee shall be permitted to have a Union member to defend him at the inquiry. Such representative shall not be a professional. If the employee wishes to have the benefit of such representation he shall inform

the Superintendent of the name of the person defending him at least 48 hours before the inquiry is due to commence. The Superintendent may object to the individual selected, in which event the accused employee may nominate another representative. The failure of an employee to be defended by a representative shall not vitiate the inquiry.

- (vi) The employer shall endeavor to give the findings and convey the punishment, if any, within a period of 30 working days from the date on which the inquiry is concluded, unless there is justification for the delay. In no case shall the findings be delayed beyond 90 working days from the date of conclusion of the inquiry, save and except in the case of a pending criminal investigation. If no findings are given within 90 working days and the above exception does not apply, the accused employee shall be exonerated of the charges.
- (vii) Notwithstanding the above provisions, an employer may, where the circumstances so warrant, terminate an employee summarily. In such event, the letter of termination shall set out the reasons for termination, including the justification for summary termination. In such event, the Union may appeal to the Employer or to the appropriate forum.

21. *Suspension Pending Disciplinary Inquiries-*

- (i) An employee may be suspended from work without pay for a period not exceeding one month pending a disciplinary inquiry when there is *prima facie* evidence, in the opinion of the Employer, of a charge or charges of misconduct against him. Such suspension shall be in writing.
- (ii) Suspension of an employee on the ground referred to in sub-clause (i) above for any period in excess of one month shall be on half pay.
- (iii) The provisions contained in sub-clauses (i) and (ii) above shall not apply to the suspension of an employee pending inquiries by the Police, by other Public Authorities or Audit Verifications.

22. *Suspension as a Measure of Punishment-*

- (i) Punishment for offences in the case of an employee may include suspension, provided however that such suspension shall not exceed fourteen days without pay and shall be in writing.
- (ii) Punishment in excess of three days suspension without pay shall only be after a domestic inquiry.

23. *Variations of Terms and Conditions of Employment & Disputes*

- (i) Parties hereto agree that during the continuance in force of this Agreement, they will not seek to vary, alter or add to any of the terms and conditions of employment, except by mutual consent.
- (ii) Any employee enjoying a benefit, which is over and above the normal entitlement, shall continue to enjoy the same as personal, but this benefit shall not extend to any other employee. The above provision shall not apply to the consumption of electricity, where a limit is fixed for all employees.
- (iii) Any dispute or issue of interpretation of this Agreement shall be resolved by reference to the Commissioner General of Labour under the Industrial Disputes Act, and if no settlement could be reached, by voluntary arbitration thereafter.
- (iv) It is agreed by and between parties that the Unions, collectively or independently, or their members, shall not resort to any form of trade union action on any matter covered by this Agreement or is connected therewith.

24. Disputes Resolution Committee - It is agreed by parties that the Disputes Resolution Committee' will meet once in three months to resolve any dispute that may arise in relation to any violation of the provisions of this Agreement. However, in case of an urgent necessity a meeting will be held with two weeks' notice if requested by either party. Decisions arrived at the Dispute Resolution Committee shall be implemented within a period agreed between the parties.

25. Duty Leave -

- (i) Subject to the approval of their respective employers, the president and one other office bearer of the Parent Union will be permitted such duty leave as their Union duties require.
- (ii) Where any dispute arises with regard to duty leave of the President and the nominated office bearer of the Parent Union, as specified in sub clause (i) above, the Federation will attempt to effect an amicable settlement between parties.
- (iii) By mutual arrangement with the Employer, the Treasurer of the Parent Union shall be allowed twelve days duty leave in any one year.
- (iv) By arrangement with their respective Employers, Two Vice Presidents of the Union shall be allowed twelve days duty leave which may be shared, on condition that the total leave availed jointly by these two vice presidents shall not exceed twelve days in any one year.
- (v) By arrangement with their respective employers, Branch Chairman and Sub-branch Chairman of the Union shall be allowed twelve days duty leave which may be shared, with the respective Branch Secretaries on condition that the total leave availed jointly by these two office bearers shall not exceed twelve days in any one year.
- (vi) Duty leave shall be granted to one employee selected from amongst all staff categories per estate selected by the union to attend seminars and workshops conducted by the union or any other labour related institute on not more than two occasion in a year for a period not exceeding four (4) days. The union shall inform the employers in writing the requirement of duty leave required in terms of this clause.

Part II

1. The Regional Plantation Companies covered and bound by this Agreement more fully described in schedule I to this Agreement undertake to discuss with the union to resolve any issues relevant to employees in a situation of amalgamation/ sub-leasing of estates/divisions/factories prior to such situations. However, the relevant regional plantation company will continue to be the employer of such employees.

2. **Electricity** - Free electricity would be granted to members of staff on the following basis, irrespective of what they had been enjoying in the past.

Elevation below 4,500 feet (Factory Elevation)

Senior staff	- 140 units
Junior staff	- 100 units

Elevation above 4,500 feet (Factory Elevation)

Senior staff	- 170 units
Junior staff	- 130 units

Recoveries for any excess usage will be made once in 6 months on the accumulated figure at the rate that costs each estate.

Kerosene - Employer shall provide 25 litres kerosene per mensem to those employees resident on estates/ divisions without electricity.

3. **Tea Allowance** - The Employer, shall provide free tea, on the following basis, to members of estate staff (including future recruits in those categories presently entitled) irrespective of what they had been enjoying in the past.

Senior staff	- 2 Kgs
Junior staff	- 1 1/2 Kgs

The staff members could purchase in addition to the above free tea, the same quantities at the rate of 75% of the NSA or COP whichever is lower.

Staff members who had been entitled to three or more kilos of tea at a concessionary rate before June 1992 would be entitled to purchase a maximum of 3 Kgs at a concessionary rate of 35% of COP or NSA whichever is lower with effect from 1st June 2003.

4. **Death Grant** -

- (i) With effect from the date hereof, on the death of a staff member, the dependants will be paid a sum of Rs. 100,000 as funeral expenses.
- (ii) The dependants of the deceased staff member will be paid 50% of the sum equivalent to 3 months salary within one month upon the death of the employee and the balance at the time the dependants hand over the staff quarters.
- (iii) If quarters are not provided to the deceased staff member, the dependants will be paid the sum equivalent to 3 months' salary within one month of the death of the staff member.

5. **Medical Aid Scheme** -

- (i) The Employee contribution to the medical aid scheme will be 5% and the Employer's contribution shall be 10%.
- (ii) A staff member who is a member of the staff medical aid scheme will be paid the total balance lying to his/her credit in the fund inclusive of the company's contribution to such fund, at the time of retirement/ death or termination of his/ her employment from the estate.

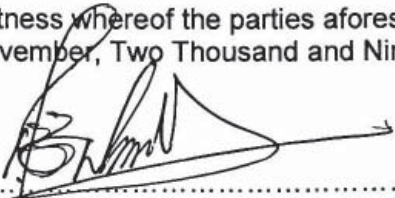
6. **Union Subscription** -

- (i) The Employer agrees, on the written request of an employee, to deduct from the wages due to such employee, the current monthly union subscription as specified by the employee, to be payable monthly by the employee to the union and remit the amount so deducted to the union by the following month, till such time the employee maintains his request.
- (ii) In the event of the union being representative of less than 40% of the employees, no remittance in respect of check-off would be made thereafter.

INTERPRETATION

Word	Meaning
Union	means the union referred to as the party of the Second Part in this Agreement.
Dispute	shall have the same meaning as in the Industrial Disputes Act.
Employer	means a company who has subscribed to this Agreement and is referred to in Schedule I hereof.
Week	means the period between midnight on any Saturday and midnight on the succeeding Sunday night.
Year	means a continuous period of 12 months.
Gender	a reference to the masculine gender shall include the feminine as well.

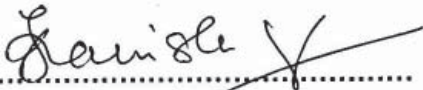
In Witness whereof the parties aforesaid have hereunto set their hands at Colombo on this 6th day of November, Two Thousand and Nineteen.



Bnathiya Bulumulla
Chairman
Plantation Services Employers' Group



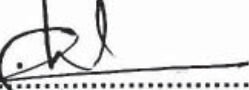
Chathura Samarasinghe
President
Ceylon Estate Staffs' Union



W M K L Weerasinghe
Director General
The Employers' Federation of Ceylon

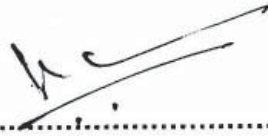
Witnesses

1.



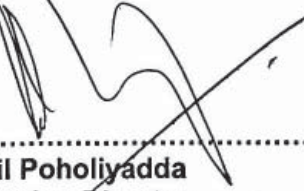
Binesh Pananwala
Director / CEO
Watawala Plantations PLC

1.



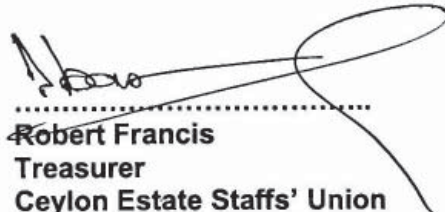
Nath Amarasinghe
General Secretary
Ceylon Estate Staffs' Union

2.



Sunil Poholiyadda
Managing Director
Lankem Tea & Rubber Plantations (Pvt) Ltd

2.



Robert Francis
Treasurer
Ceylon Estate Staffs' Union

3.



Prasad de Silva
Assistant Director General
Head of Plantation Services
The Employers' Federation of Ceylon

3.



K.H.A.S. Wickramaratne
Deputy President
Ceylon Estate Staffs' Union

SCHEDULE I

Agalawatte Plantations PLC
Agarapatana Plantations Limited
Balangoda Plantations PLC
Bogawantalawa Tea Estates PLC
Elpitiya Plantations PLC
Elkaduwa Plantations Limited
Hapugastenne Plantations PLC
Hatton Plantations PLC
Horana Plantations PLC
Kahawatte Plantations PLC
Kelani Valley Plantations PLC
Kotagala Plantations PLC
Madulsima Plantations PLC
Malwatte Valley Plantations PLC
Maturata Plantations Limited
Pussellawa Plantations Limited
Talawakelle Tea Estates PLC
Udapussellawa Plantations PLC
Watawala Plantations PLC

SCHEDULE II

Clerical Staff Salary Ranges

	Previous Salary	Present Salary with 25%	Proposed Initial Salary	Increment 2019/20 & 2021/22 2020/21	
Junior Clerk	Rs. 24,100	Rs. 30,125	Rs.30,125	Rs. 600	Rs. 675
Clerk	Rs. 24,350	Rs. 30,438	Rs. 30,440	Rs. 700	Rs. 825
Stores Keeper	Rs. 24,350	Rs. 30,438	Rs. 30,440	Rs. 700	Rs. 825
Senior Clerk	Rs. 24,600	Rs. 30,750	Rs. 30,750	Rs. 850	Rs. 1,025
Admin. Officer	Rs. 25,850	Rs. 32,313	Rs. 32,320	Rs. 1,350	Rs. 1,575
Special Grade Admin Officer	Rs. 31,100	Rs. 38,875	Rs. 38,880	Rs. 1,700	Rs. 2,025

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